

In *Millian Principles, Freedom of Expression, and Hate Speech*, David Brink poses an argument concerning Mill's view on the regulation(s) of hate speech. It seems close to impossible to put forth such a regulation that will protect against the use of hate speech, while not imposing limits on the expressions and speech of others. So, then why do we even ponder the use of hate speech if it only seems to cause harm? Mill states, and Brink supports, that even hate speech is a form of expression, and we have the right to express ourselves, even though said 'expression' may contain words or phrases that are being used in ways that disturb and belittle others. "Offensive ideas are part of the price one must pay to protect these constitutional rights." (119) Here, "offensive ideas" (119) are what Brink refers to as "bright-line principles" (148), and "constitutional rights" (119) meaning freedom of expression. In the conclusion of his paper, Brink stresses that the "Millian perspective on hate speech justifies regulation by appeal to deliberative values" (154) — values that are really thought through and that can then be discussed openly — the perspective seems attractive to the same set of values that "explain why censorship is normally impermissible." (*Millian Principles, Freedom of Expression, and Hate Speech*, 154) In the words that follow we shall see how Brink goes about supporting the conclusion he presented, which in turn will tackle how a utilitarian can justify the regulation of hate speech.

Brink first highlights how we like to think that there is more of a "cultural significance" to an action, like that of regulating hate speech, than there really is. He argues that hate speech shouldn't be attached to "political correctness" (154) like it is. To elaborate, Brink says that hate speech constitutes a small portion of what is called "genuinely discriminatory speech" (154), and that "politically incorrect speech" (154) is a class of speech, even more expansive than that of genuinely discriminatory speech. So then, it doesn't make sense to say that a regulation on hate speech was done in the name of political correctness. Brink concludes this part of the argument by identifying the intent of such a regulation: "...hate speech regulations aim to establish the kind of culture in which vigorous discussion and debate among disparate views can be both possible and profitable." (*Millian Principles, Freedom of Expression, and Hate Speech*, 154)

Brink then addresses constitutional and political theory: what interests and liberties are fundamental to us? An interesting note from Brink: “We have rights not to liberties as such, but to important fundamental liberties, including First Amendment liberties.” (156) The constitutional theory seems to understand this, giving attention to certain liberties that are fundamental to us. The theory acknowledges these “liberties as constitutional rights” (156) by assigning to them protection. As nice as this all sounds, the theory does not in fact acknowledge Freedom of Speech as such. Our first amendment only protects us against what is called “high-value speech”(156) and not necessarily against “low-value speech” (156) – which a person can probably assume where speech like *hate speech* falls. Referencing the Millian Perspective, Brink re-exhausts how it “explains the importance of liberties...in terms of deliberative values...essential to our being morally and politically responsible agents.” (156) He then argues that understanding a fundamental liberty, in deliberative terms, one can easily “refuse to recognize a fundamental liberty to engage in hate speech.” (*Millian Principles, Freedom of Expression, and Hate Speech*, 156) So even though hate speech seems to do more bad than it does good, it should not be looked at as a limitation of said fundamental liberties. Brink ends his conclusion in support of using the Millian Perspective to explore other issues of our First Amendment jurisprudence.